

**BEFORE THE NATIONAL GREEN TRIBUNAL
PRINCIPAL BENCH, NEW DELHI**

Original Application No. 83/2025
(I.A. No. 132/2025)

Shakuntla Devi Applicant

Versus

Ms. Kiran & Ors. Respondent(s)

Date of hearing: 28.02.2025

**CORAM: HON'BLE MR. JUSTICE PRAKASH SHRIVASTAVA, CHAIRPERSON
HON'BLE DR. A. SENTHIL VEL, EXPERT MEMBER**

Applicant: Ms. Rashmi Sharma, Adv. for Applicant

ORDER

1. In this original application, the applicant has alleged that illegal submersible/borewell has been dug up at 2271 to 2277 and 2285 to 2287 Murliwala Kuan, Subzi Mandi, Ghanta Ghar, Delhi-110007. Further, allegation of the applicant is that respondents nos. 1, 2 and 3 with indirect support of respondent no.4, are making commercial construction. From the said illegal borewell water is extracted for construction purposes.

2. Learned Counsel for the applicant has pointed out that the complaint (page no.61) has already been sent to Delhi Jal Board (DJB) on 12.12.2024, but till now action has not been taken.

3. If there is a complaint with respect to the extraction of groundwater from an illegal borewell, then the appropriate concerned authority is required to take expeditious action and do the needful as required by law. Hence, we dispose of the original application directing the Chairman, DJB, to duly consider the complaint of the applicant and ensure

appropriate action, including submission of the report to the SDM, Burari, for appropriate remedial action. Let this exercise be completed within two months from the date of receipt of a copy of this order.

4. It will be open to the applicant to submit all the supporting material before the Chairman, DJB along with a copy of this order.

5. A copy of this order be forwarded to the Chairman, DJB and District Magistrate, Burari by email for compliance.

6. OA is accordingly disposed of.

7. Pending IA(132/2025) is also disposed of.

Prakash Shrivastava, CP

Dr. A. Senthil Vel, EM

February 28, 2025
Original Application No. 83/2025
(I.A. No. 132/2025)
JG..